

		at 6:3-4), the document attached as Exhibit 7 is a copy of an Order Approving Compromise of Minor's Claim filed in the underlying action on April 10, 2001. That order further undermines the petition because it contradicts the other representations about the underlying settlement and describes a different transaction than what Petitioner and Payee represent. For example, the petition states a single lump sum of \$140,000 is being transferred but the order states there was to be a single lump sum payment of \$100,000 to be made to Payee when he turned 25. Not only are the amounts inconsistent, but Payee also states he is currently 28 and therefore the payment described in the order already should have been made. In addition, Payee states the transaction is "in the best interests of my family." (Payee Decl. ¶6.) At Exhibit 5, however, he states he has no dependents. It is therefore not clear what "family" he is referring. Moreover, Payee states the purpose for the transfer is to "purchase a car, cover housing expenses and other living general expenses." But there is no information provided as to Payee's current living expenses, contributions from his "family" or why his \$3,800/month income is insufficient. More information is required about Payee's financial circumstances. The court further notes it cannot find the verified statement from Petitioner stating that all the conditions set forth in Sections 10136, 10137, and 10138 have been met. Such a statement is customarily attached to petitions such as this pursuant to Insurance Code section 10139. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice.
9.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> <i>2025-01489807</i>	Before the court is continued hearing on the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As more fully set forth below, the motion is GRANTED. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained.

		On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the \$27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant filed the motion on March 16, 2026, and the court conducted the initial hearing on this motion on May 28, 2026. At that time, the court continued the hearing to today's date based on defects in the proof of service attached to the motion and the evidentiary showing in support of the motion as more fully described in the court's May 28, 2026 Minute Order. Following that hearing, Claimant, through her daughter and power of attorney, submitted a request for judicial notice, a new declaration, and proofs of service showing service of these papers and notice of this hearing on all potential claimants identified in Petitioner's petition. Through her supplemental filings, Claimant has shown she was the record owner of the property immediately prior to the trustee's sale. No other lienholder or claimant has come forward to state in other claim to the surplus funds. Claimant therefore has established she is entitled to the entirety of the surplus funds on deposit with the court. Based on the foregoing, Claimant's motion and claim are GRANTED. Claimant's request for judicial notice also is GRANTED. The clerk of the court is directed to release the deposited funds to claimant consistent with the written order to be signed by the court. Claimant is ordered to submit a proposed order granting her claim. The order must identify the specific amount to be paid, to whom the check is to be made payment, and the address to which the check should be sent. The current proposed order is not sufficient. Claimant's counsel is ordered to give notice of this ruling.
10.	<i>Mary E. Schuchart, Trustee of The Schuchart Family Revocable</i>	Transferred to Department C66 to be heard in an unlawful detainer courtroom on August 12, 2026, as stated in the court's August 3, 2026 Minute Order.